HEADNOTE

"1. Art. 24 para. 1 (c) UPCA in conjunction with Art. 69 EPC exhaustively determine which documents must be used in the interpretation of patent claims defining the scope of protection, namely the patent specification and patent drawings. Since the prosecution file is not mentioned in Art. 69 EPC, it is in principle not permissible interpretative material. If the applicant has made statements during the examination procedure regarding the meaning of a feature or term, this can at most have evidentiary significance for how the skilled person understands the relevant feature.

2. A claimant must in principle not take any risk in enforcement proceedings within interim measures proceedings. He need not approach the court until he has reliable knowledge of all facts that would make enforcement in interim measures proceedings promising and until he can substantiate these facts.

3. According to para. 7, sentence 3 of the preamble of the Rules of Procedure, the parties must cooperate with the court and present their arguments as early as possible. Submissions that reach the file only after the end of oral proceedings do not meet these requirements from the outset and are therefore regularly to be rejected as late. This applies in any case unless the party concerned has exceptionally already been granted the right during oral proceedings, upon a substantiated request, to submit further arguments within a period set by the court.

4. There is in any case no reason for a costs decision in interim measures proceedings if the interim proceedings are followed by main proceedings. For this case, the Rules of Procedure provide for provisional cost reimbursement (R. 211.1 (d) RoP), by which the successful party can assert its costs of the interim proceedings and have them directly enforceable. For an analogous application of R. 118.5 RoP, there is therefore already a lack of an unintended legislative gap.

5. The court may require the provision of appropriate security in favour of the respondent in the event that the interim measures order is set aside. Unless the specific circumstances require otherwise as an exception, use should as a rule

be made of this possibility."

COURT
Local Division in Düsseldorf

PROCEEDINGS
Procedural order

PATENT
EP 3 466 498 B1

Search device for avalanche victims and method for operating a search device for avalanche victims

KEYWORDS
Examination request
Scope of examination
Patent interpretation
Grant file
Delay
Cost decision
Security deposit

Article 24 Sources of law

SUMMARY
The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to a search device for avalanche victims and method for operating a search device for avalanche victims. According to the headnotes of the decision, when interpreting patent claims, only the patent specification and drawings may be used as interpretative material, while the prosecution file is generally excluded unless statements made during examination serve as evidence of how a skilled person would understand a particular feature. A claimant pursuing interim measures should not proceed to court until possessing reliable knowledge of all relevant facts and being able to substantiate them with evidence. The parties must cooperate with the court and present their arguments as early as possible in the proceedings, meaning that submissions filed only after oral proceedings have concluded will normally be rejected as late unless the court has previously granted an exception. When interim proceedings precede main proceedings, no separate costs decision is required in the interim stage because the Rules of Procedure provide for provisional cost reimbursement, which allows the successful party to recover costs directly without needing an analogous application of other cost provisions. The court may require the unsuccessful party in interim measures to provide appropriate security in favour of the opposing party in case the interim order is later set aside, and such security should ordinarily be used unless exceptional circumstances suggest otherwise.